

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUOE061049: REBECCA WINCHESTER vs CRACKER BARREL OLD
COUNTRY STORE, INC., A FLORIDA CORPORATION**

08/03/2026 in Department 44

Motion to Stay Pending Resolution of Related Action

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Cracker Barrel Old Country Store, Inc.’s Motion to Stay Pending Resolution of Related Action

Tentative Ruling:

The motion is GRANTED under Code Civ. Proc. § 1281.4.

In the Initial Action, the Court ordered Winchester’s individual wage-and-hour claims to arbitration. Those claims include whether Cracker Barrel failed to pay Winchester minimum and overtime wages, provide compliant meal and rest periods, reimburse business expenses, issue accurate wage statements, and timely pay wages. These are substantially the same predicate Labor Code violations underlying the present PAGA action.

Code Civ. Proc. § 1281.4 does not require that the causes of action, remedies, or parties’ capacities be identical. It requires that a “controversy” ordered to arbitration be “an issue involved” in the pending action. A controversy may be a single overlapping question of law or fact. (Code Civ. Proc., §§ 1280(c), 1281.4; *Heritage Provider Network, Inc. v. Superior Court* (2008) 158 Cal.App.4th 1146, 1152-1153.) Where that condition is met, the statutory direction

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that the court “shall” stay the action is mandatory. (*Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1374-1375.)

Plaintiff’s dismissal of the individual component of her PAGA claim does not eliminate the overlapping factual questions. The operative PAGA complaint continues to allege that Winchester personally suffered the asserted Labor Code violations and qualifies as an “aggrieved employee.” Because this action was commenced after the 2024 PAGA amendments and the LWDA notice was submitted after June 19, 2024, Winchester must establish that she was employed by Cracker Barrel and “personally suffered each of the violations alleged.” (Lab. Code, § 2699(c)(1), (v).) The arbitration will therefore determine issues directly relevant to Winchester’s status as an aggrieved employee and to the predicate violations supporting the requested PAGA penalties.

Plaintiff’s argument that no PAGA claim is pending in arbitration is not dispositive. Code Civ. Proc. § 1281.4 focuses on overlapping controversies, not whether the same formally pleaded claim appears in both proceedings. Nor does the nonarbitrability of the representative PAGA claim prevent a stay. Nonarbitrable claims may remain in court while proceedings on them are stayed pending resolution of related arbitrable issues. (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1123-1124; *Cook v. Superior Court* (1966) 240 Cal.App.2d 880, 885.) *Adolph* specifically recognized that a court may stay nonindividual PAGA claims while arbitration determines whether the plaintiff is an aggrieved employee, after which a confirmed arbitral determination may bind the court.

A stay limited to particular issues would not be practical here. The present complaint asserts a single representative PAGA cause of action premised on numerous interrelated wage-and-hour violations. Discovery concerning statewide policies, payroll and time records, meal and rest periods, expense reimbursement, wage statements, and final wages would substantially overlap with the evidence relevant to Winchester’s individual claims. The overlapping questions are not readily severable from the representative claim without creating duplicative discovery and a risk of inconsistent determinations.

The Court need not decide here whether the amended PAGA statute permits Winchester to maintain a representative-only or “headless” PAGA action. The Court’s May 22, 2026 order dismissing the individual PAGA component remains in effect, and Defendant has not presented a noticed motion to vacate that order or dismiss the remaining claim. Moreover, *Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001, review granted April 16, 2025, S289305, is not controlling while review remains pending. Even assuming the remaining representative claim is procedurally viable, Code Civ. Proc. § 1281.4 requires a stay because issues ordered to arbitration remain involved in this action.

The Court recognizes that the arbitration itself has been stayed pending Winchester’s appeal and that the resulting delay may be substantial. That concern does not eliminate the statutory overlap or permit simultaneous adjudication of issues committed to arbitration. The potential prejudice from delay can instead be addressed by retaining authority to terminate or modify the stay at an earlier time, requiring prompt notice of developments in the appeal and arbitration, and conducting periodic status reviews.

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Alternatively, even if Code Civ. Proc. § 1281.4 did not mandate a stay, the Court would exercise its inherent case-management authority to impose one. The proceedings involve the same employee and employer, substantially the same alleged employment practices, overlapping documents and witnesses, and factual determinations that may affect Winchester's standing and the availability of PAGA penalties. Proceeding simultaneously would impose duplicative costs and create a material risk of inconsistent findings. (See *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 758.)

Defendant Cracker Barrel Old Country Store, Inc.'s motion to stay pending resolution of the related action is GRANTED.

This action, including all formal discovery, is stayed pursuant to Code Civ. Proc. § 1281.4.

This ruling does not determine the ultimate viability of Plaintiff's representative-only PAGA claim and does not alter the Court's May 22, 2026 dismissal order. The separately calendared order to show cause regarding consolidation is addressed independently.

The parties shall file a joint status 10 days prior to the status conference re: Arbitration Stay on **August 3, 2027**, at **8:30 a.m.**, which the Court hereby sets.

Defendant to give notice.